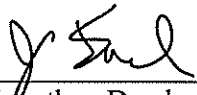


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board, to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, July 20, 2023.

Contents noted. Recommend approval of the negotiated plea agreement in DADS No.2021-24230 against Police Officer Juan Pinero, Tax Registry No. 953256.

The case was conferenced on June 15, 2023, before Deputy Commissioner of Trials Vanessa Facio-Lince who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of Ten (10) vacation days, after Police Officer Juan Pinero accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated November 22, 2021. Charges and Specifications are dismissed for plea purposes.



Jonathan Darche

Executive Director

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24230
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PINERO	FIRST JUAN	M.I.	COMMAND HOUSING PSA 7
SHIELD NO. 895	TAX REGISTRY NO. 953256	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Juan PINERO, on or about October 24, 2019, at approximately 1324, while assigned to PSA 7 and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Juan PINERO, on or about October 24, 2019, at approximately 1324, while assigned to PSA 7 and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card police necessity.	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

10/10/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 2, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-24230 against Police Officer Juan Pinero, Tax #953256, with the recommendation that Charges and Specifications be dismissed and receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

TIK/jpc

DC Braschi
Tania I. Kinsella
/ **FIRST DEPUTY COMMISSIONER**

APPROVED

Edward A. Caban
OCT 10 2023
EDWARD A. CABAN
POLICE COMMISSIONER

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